

Court No. - 21

Case :- WRIT - C No. - 7086 of 2017

Petitioner :- Dinesh Kumar Agarwal

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Bhanu Prakash Verma

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble V.K. Shukla, J.

Hon'ble Mrs. Sangeeta Chandra, J.

Petitioner, Dinesh Kumar Agarwal claims that he is tenant of the erstwhile owner, and the electricity connection in question that was in the name of landlord, the same has been got illegally disconnected.

Petitioner is contending before this court that directives be issued to respondent no. 2 Executive Engineer, Electricity Distribution Division (Village Third) Mathura Dakshinanchal Vidyut Vitran Nigam Limited Mathura, District Mathura to provide new electricity connection in the name of petitioner.

Under the Electricity Act, 2003 read with U.P. Electricity Supply Code, 2005, a full-fledged mechanism has been provided for obtaining new electricity connection and it has been contended before us that till today, petitioner has not moved any application for the new electricity connection. In view of this, it is being contended that the prayer that has been so made before us, should not be accorded. From the record, this much is clearly reflected that till today, as is envisaged application in the prescribed format, has not at all been moved by the petitioner, and the petitioner has straight away rushed to this Court.

Consequently, we are not at all in a position to allow this writ petition in question, but certainly, we can accord opportunity to the petitioner, that in case he moves the application for grant of new electricity connection after fulfilling each and every prerequisite formalities as is provided under the Electricity Act, 2003 read with U.P. Electricity Supply Code, 2005, then it is always expected that within the time frame provided for, the Executive Engineer, Electricity Distribution Division (Village Third) Mathura Dakshinanchal Vidyut Vitran Nigam Limited Mathura, District Mathura would look into the grievance of the petitioner and redress the same in accordance with law.

With the above, present writ petition is **disposed of**.

Order Date :- 15.2.2017

Shalini